

25STCV33511 25STCV33511

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Division: Civil Law and Motion
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Case Number: 25STCV33511 Hearing Date: August 25, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

KEITH SMITH,

Plaintiff,

vs.

INGRID QUINN, et al.,

Defendants.

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CASE NO.: 25STCV33511

[TENTATIVE] ORDER OVERRULING DEMURRER

Dept. 506

8:30 a.m.

August 25, 2026

On November 17, 2025, Plaintiff

Keith Smith filed this action against Defendant Ingrid Quinn and others. The Complaint alleges (1) quiet title, (2) partition and sale of real property, and (3) accounting.

On

February 20, 2026, Defendant filed a demurrer.

REQUEST

FOR JUDICIAL NOTICE

Defendant's

request for judicial notice of filings in Case No BC439949 is granted. "[E]ven though a factual finding in a prior judicial

decision may not establish the truth of that fact for purposes of judicial notice, the finding itself may be a proper subject of judicial notice if it has a res judicata or collateral estoppel effect in a subsequent action.” (Kilroy v. State of California (2004) 119 Cal.App.4th 140, 148; see also Evid. Code, § 452, subd. (d).)

DEMURRER

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

Defendant’s

demurrer is based on the parties’ 2010 litigation in Case No. BC439949. Defendant argues that this action is barred by the doctrine of merger, res judicata, collateral estoppel, and the compulsory cross-complaint statute.

In

Case No. BC439949, Quinn sought to quiet title to the same property, with Quinn having a 70% interest and Smith having a 30% interest. (RJN, Ex. 1, ¶ 22.) Eventually, the parties entered into a settlement

agreement requiring Quinn to pay Smith \$60,000 in exchange for a deed quitclaiming

all of Smith's interest to Quinn. (RJN, Ex.

2.) The settlement was reduced to a judgment

on June 27, 2011. (RJN, Ex. 2.) Quinn never paid Smith, Smith never quitclaimed

the property, and the judgment was not renewed.

(Complaint ¶ 15.)

In

this action, Smith "seeks a determination of his fee simple title in this action

as of June 20, 2011, the date of the Judgment in the Quinn Action." (Complaint ¶ 20.) Smith also seeks an accounting of rents and profits

from tenants who resided at the property since June 20, 2011. (Complaint ¶ 32.)

Although

Defendant argues that ownership of the property was already adjudicated (Demurrer

at pp. 5-7), the June 27, 2011 judgment is no longer enforceable. Plaintiff also could not have filed a cross-complaint

in Case No. BC439949 because Plaintiff seeks to adjudicate the parties' rights after

the date of the judgment. (Demurrer at pp.

7-8.) At the pleading stage, the Court cannot

conclude that Plaintiff's claims are barred.

The

demurrer is overruled.

CONCLUSION

The

demurrer is OVERRULED. Defendant is ordered

to file an answer within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 25th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court